

ExpectedEstate

POD TOD TRANSFER

NAVIGATION

Dashboard

Settlement Path

SETTLEMENT

Asset Ledger

Liabilities

Accounting

Final Distribution

Official Forms

RECORDS

Discovery Assistant

Document Vault

Settlement Trail

Follow-Ups

SUPPORT

Help Center

Settings

SYSTEM

Profile

Admin Console

pth13-smallestate

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https://www.expectedestate.com/roadmap

Strategic Assessment
Secure & Notify
Death to Filing

Petition & Authority
Obtaining Powers
After Petition Filed

Asset Discovery
Inventory & Appraisal
After Letters Issued

Creditor Claims
Notice & Priority
After Notice Published

Asset Liquidation
Managed Transfer
After Inventory Approved

Final Distribution
Estate In Closing
After Claim Period

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Preliminary Assessment

Current

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Preliminary Asset & Liability Scan

NEXT STEP

Identify known bank accounts, real estate, and major debts. This data is critical for estimating estate value on the petition and determining requirements.

Evaluate Small Estate Eligibility

OPTIONAL

Determine if total assets are under the state's small estate threshold. This may allow for a simplified Affidavit process, bypassing full probate.

Start Fast-Track

Confirm Executor/Trustee Role

Review the Will or Trust to confirm your appointment and willingness to serve.

Profile Settings

Secure the Property

Change locks, forward mail, and ensure the home is protected from theft or damage.

Upload Photos

Identify Minor Beneficiaries

OPTIONAL

Review all heirs and identify any beneficiaries under age 18. Minors require special court protection through a guardian ad litem.

Protect Minors

Evaluate Primary Residence Succession

OPTIONAL

If the estate consists primarily of a primary residence valued under \$100,000, you may qualify for the simplified Succession process (DE).

Check Eligibility

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☐ Initial Property Protection

Ensure the decedent's residence is secured, mail is forwarded, and assets are protected from loss or damage.

☐ Notify Social Security Administration

Report the death to stop benefit payments and prevent overpayment recovery.

 Death Certificate Obtained



Upload Death Certificate

☐ Cancel Credit Cards & Subscriptions

Stop recurring charges and prevent identity theft by closing accounts.

Manage Accounts

☐ Manage Utilities

Review decedent's utility accounts (electricity, water, gas).

☐ Conduct Genealogical Search OPTIONAL

If heirs are unknown or missing, you must perform a formal search to identify all legal beneficiaries. This is required for your final distribu

☐ Locate Will and Important Documents

Find the original Will, trust documents, insurance policies, and account statements.

Upload Will

☐ Establish Estate Financial Account

Open a separate fiduciary account for estate income and expenses once legal authority is obtained.

 Death Certificate Obtained



 UPLOAD LETTERS (DE-150)

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Upload Proof

☐ Managed Payment of Immediate Bills

Prioritize current utilities, mortgage, and insurance to protect the value of estate assets.

Track Bills

☐ Confirm U.S. Legal Representative

Decide if you will hire a U.S. probate attorney or appoint a local co-executor/agent to handle on-the-ground tasks.

☐ Check Apostille Requirements

Determine if your country is part of the Hague Apostille Convention for notarizing documents.

 UPLOAD MISCELLANEOUS

☐ Court Filing

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☐ File Petition for Probate (DE-111)

Submit the probate petition to the Superior Court to open the estate case.

 UPLOAD ORIGINAL WILL



Death Certificate Obtained



 UPLOAD DE-111

 UPLOAD DE-121

Start Petition

☐ Publish Creditor Notice Check Deadline LOCKED

Publish notice in a local newspaper for 3 consecutive weeks to notify creditors.

 UPLOAD COURT CASE NUMBER

 UPLOAD DE-130

Upload Notice

☐ Mail Notice to Known Creditors LOCKED

Send formal notice to all known creditors (banks, credit cards, medical providers).

 UPLOAD DE-157

Notify Creditors

☐ Attend Probate Hearing LOCKED

Appear in court for the probate hearing (usually 60-90 days after filing).

 UPLOAD VALID ID

 UPLOAD DE-130

View Roadmap

☐ Establish Fiduciary Authority (DE-150) LOCKED

Obtain certified copies of the Letters—this document is your legal evidence of authority to manage estate assets.

 UPLOAD DE-150

☐ File Small Estate Affidavit OPTIONAL

For estates under threshold, use this shortcut to bypass court probate.

 UPLOAD DE-310

 Death Certificate Obtained



☐ File Spousal Property Petition (DE-221) OPTIONAL

Request court order to transfer property to surviving spouse without full probate.

 UPLOAD DE-221

 Death Certificate Obtained



Start Spousal Path

☐ Give Notice of Hearing (DE-120) OPTIONAL LOCKED

Notify all interested parties about the court hearing date for the Spousal Property Petition.

 UPLOAD DE-120

☐ Obtain Spousal Property Order (DE-226) OPTIONAL LOCKED

Receive signed court order confirming property ownership transfer to spouse. Record with county recorder if real estate is involved.

 UPLOAD DE-226

☐ Issue Certificate of Trust OPTIONAL

Formalize successor trustee authority for trust-held assets.

 UPLOAD TRUST AGREEMENT

☐ Obtain Business Operating Authority OPTIONAL

If the decedent owned a business, you may need a court order to continue operations and pay employees.

☐ File Petition for Guardian Ad Litem (DE-350) LOCKED

Request court appointment of a guardian ad litem to represent minor beneficiaries' interests throughout probate.

 UPLOAD DE-350

 Death Certificate Obtained



Set Up Guardian

☐ Obtain Guardian Ad Litem Order (DE-351) OPTIONAL LOCKED

Receive court order appointing guardian ad litem. Provide guardian with all estate information.

 UPLOAD DE-351

Get Final Order

☐ File Petition to Determine Succession (DE-310) OPTIONAL

File petition with court to determine who inherits the primary residence without full probate.



UPLOAD DE-310

Death Certificate Obtained



UPLOAD PROPERTY DEED

Start Succession



Give Notice of Hearing (DE-120) OPTIONAL LOCKED

Notify all interested parties of the hearing date for the succession petition.

UPLOAD DE-120



Obtain Order Determining Succession (DE-315) OPTIONAL LOCKED

Receive court order determining property succession. Record order with county recorder.

UPLOAD DE-315



Track Special Notice Requests (DE-154) OPTIONAL LOCKED

Maintain list of all parties who have requested special notice. You must serve them copies of ALL court filings.

UPLOAD DE-154

UPLOAD DE-130

Open Registry



Serve All Special Notice Recipients OPTIONAL LOCKED

Each time you file a document with the court, serve copies by mail on all parties who requested special notice.

Service Tracker



Request Bond Waiver from Heirs (DE-142) OPTIONAL LOCKED

Ask all heirs to sign waivers of bond requirement. Bond costs 0.5-1% of estate value annually.

UPLOAD DE-142

Avoid Bond Cost



File Waiver of Bond (DE-142) OPTIONAL LOCKED

Submit signed waivers to court and request order waiving bond requirement.

UPLOAD DE-142

Open Workbook



Obtain Order Waiving Bond (DE-143) OPTIONAL LOCKED

Verify that the court has officially waived the bond requirement, typically reflected in a separate Order (DE-143) or the Order for Probate

UPLOAD DE-143

UPLOAD DE-140

Open Workbook



Respond to Objections (DE-115/116) OPTIONAL LOCKED

If someone files an objection to the petition or will, you must respond formally and prepare for contest hearing.

UPLOAD DE-115

UPLOAD DE-116

View Litigation



Attend Will Contest Hearing OPTIONAL LOCKED

Appear in court for hearing on objection. Be prepared to present evidence supporting will validity.

Hearing Plan



Resolve Will Contest OPTIONAL LOCKED

Obtain court ruling on objection. If will is upheld, proceed with probate. If invalidated, estate becomes intestate. Contested probate can extend timeline by 6-24 months.

View Outcome



UPLOAD MISCELLANEOUS



Asset Discovery

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Search State Unclaimed Property

Check state databases for dormant accounts, uncashed checks, or forgotten insurance policies.

Hire Business Valuation Expert

OPTIONAL

If the estate includes an ongoing business, a professional valuation is required for tax and distribution purposes.

Coordinate with Financial Institutions

Provide notice of your fiduciary authority to banks, brokerages, and insurance companies to secure accounts.

Death Certificate Obtained



UPLOAD LETTERS (DE-150)

Freeze Accounts

Obtain Date-of-Death Values

Request official DOD statements from every financial institution.

UPLOAD LETTERS (DE-150)

Get DOD Values

Hire Probate Referee for Real Property

OPTIONAL

Court-appointed appraiser must value real estate, business interests, and collectibles.

UPLOAD COURT APPOINTMENT

Manage Assets

Complete Inventory & Appraisal (DE-160)

Check Deadline

List ALL assets with DOD values and attach appraisal reports.

UPLOAD ALL DOD STATEMENTS



UPLOAD APPRAISAL REPORTS

File Inventory with Court

LOCKED

Submit DE-160 to court and serve copies on all heirs.

International Tax Withholding Review

Identify beneficiary residency and citizenship to determine if 30% withholding applies.

Coordinate with Guardian Ad Litem

OPTIONAL

LOCKED

Keep guardian informed of all estate actions. Obtain guardian's approval before major decisions affecting minors.

Open Workbook



UPLOAD MISCELLANEOUS

Creditor Claims

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FIDUCIARY RISK: Statutory Debt Priority

Evaluate claims according to legal priority (e.g., administration costs, taxes, then general debts).

International Fiduciary: W-8BEN/W-8CE Assessment

For non-resident executors or beneficiaries, determine U.S. tax withholding requirements and treaty eligibility.

International Fiduciary: ITIN Acquisition Protocol

Identify foreign beneficiaries without a SSN/ITIN. Coordinate acquisition of U.S. Individual Taxpayer Identification Numbers to avoid maxi withholding on distributions.



☐ Evaluate Estate Solvency

Compare total assets to total liabilities and funeral/admin expenses.

☐ Wait for 4-Month Claim Period LOCKED

Creditors have 4 months from notice publication to file claims.

☐ Review Submitted Claims

Examine each creditor claim for validity, amount, and supporting documentation.

Review Claims

☐ Document Claim Evaluation & Decision

Formally evaluate each timely creditor claim. Document whether the claim is allowed in full, partially allowed, or rejected.

☐ Reject Invalid Claims OPTIONAL

File formal rejections for claims that are incorrect, unsupported, or time-barred.

UPLOAD DE-174 ALLOWANCE OR REJECTION

☐ Pay Approved Claims LOCKED

Pay valid debts in order of priority (funeral, taxes, secured debts, then unsecured).

☐ File Proof of Notice LOCKED

Submit proof that you properly notified all creditors.

UPLOAD PROOF OF PUBLICATION

UPLOAD PROOF OF MAILING

UPLOAD MISCELLANEOUS

☐ Asset Liquidation

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☐ Obtain Court Approval for Minor Distributions OPTIONAL

Distributions to minors usually require a guardianship or court order to be placed in a blocked account.

☐ Present Letters to All Institutions

Submit certified Letters (DE-150) to every bank, brokerage, and insurance company.

UPLOAD LETTERS (DE-150)

Death Certificate Obtained



☐ Transfer Financial Accounts LOCKED

Move stocks, bonds, and cash to estate account or directly to beneficiaries.

☐ Prepare Notice of Proposed Action (DE-165) OPTIONAL

If you have Independent Administration of Estates Act (IAEA) authority, you must notify heirs of your intent to sell real property.

UPLOAD DE-165

Authorization

☐ Wait for 15-Day Objection Period OPTIONAL LOCKED

Mandatory waiting period after serving Notice of Proposed Action to allow heirs to respond or object.

Track Notice

☐ File Petition to Confirm Sale (DE-260) OPTIONAL

If you do NOT have IAEA authority, or if someone objects, you must petition the court to confirm the sale of real property.

UPLOAD DE-260

File Petition

POD TOD TRANSFER

NAVIGATION

SETTLEMENT

RECORDS

SUPPORT

SYSTEM

☐ Obtain Sale Confirmation Order (DE-265) OPTIONAL LOCKED

Receive signed court order confirming the real estate sale and allowing the close of escrow.

 [UPLOAD DE-265](#)

Obtain Order

☐ Complete Property Sale & Close Escrow OPTIONAL LOCKED

Finalize the sale of real estate, sign closing documents, and receive sale proceeds into the estate account.

 [UPLOAD FINAL HUD-1/CLOSING STATEMENT](#)

Finalize Sale

☐ File Form 1041 (Fiduciary Income Tax)

Report income, deductions, and credits for a trust or estate that has gross income of \$600 or more in a tax year.

☐ Issue Schedule K-1 to Beneficiaries

Provide beneficiaries with their share of income, deductions, and credits to report on their individual tax returns.

☐ Pay Final Taxes Check Deadline

File final individual 1040, estate 1041, and any estate tax returns.

 [UPLOAD ALL TAX DOCUMENTS](#)

☐ Prepare Final Accounting LOCKED

Document all income, expenses, and distributions for court review.

Finalize Estate

 [UPLOAD MISCELLANEOUS](#)



Final Distribution

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Complete liquidation first

View Assets →



ExpectedEstate is not a law firm. We provide recordkeeping tools to help executors document fiduciary actions for attorney review. Use does not create an attorney-client relationship.



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